

The Board of Education of the Brecksville-Broadview Heights City School District met in special session on July 5, 2023, commencing at 5:30pm, in the Board Room at 6638 Mill Road, Brecksville, Ohio, with the following members present:

The Treasurer advised the Board that the notice requirements of Section 121.22 of the Revised Code and the implementing rules adopted by the Board pursuant thereto were complied with for the meeting.

_____ moved the adoption of the following Resolution:

RESOLUTION NO. _____

**A RESOLUTION AUTHORIZING THE SALE OF THE HIGHLAND
PROPERTY FOR \$1,100,000 TO CITY OF BRECKSVILLE OR ITS
ASSIGNEE TRIBAN INVESTMENT, LLC.**

WHEREAS, the District has previously authorized an agreement with the City of Brecksville to sell its Chippewa and Highland properties to the City or its assignees; and

WHEREAS, the City issued a Request for Proposals and received proposals for the Highland property; and

WHEREAS, the administration recommends Triban Investment, LLC's (Triban) proposal for the Highland property in an amount of \$1,100,000; and

WHEREAS, Triban is a subsidiary of KNEZ Homes and has experience in housing developments; and

WHEREAS, Triban has submitted \$110,000 in earnest money; and

WHEREAS, Triban has requested to extend the date of closing until September 15, 2023 and has deposited an additional \$300,000 with the District; and

WHEREAS, the City of Brecksville has approved the agreement.

NOW, THEREFORE, BE IT RESOLVED by the Board of Education of the Brecksville-Broadview Heights City School District, County of Cuyahoga, Ohio, that:

Section 1. This Board hereby authorizes the President and Treasurer of this Board to sign the Real Estate Transfer and Development Agreement on file with the Treasurer for the sale of the

Highland Property for \$1,100,000 to the City of Brecksville or its assignee the Triban Investment, LLC.

Section2. This Board finds and determines that all formal actions of this Board and of any of its committees concerning and relating to the adoption of this resolution were taken, and that all deliberations of this Board and of any of its committees that resulted in such formal actions were held, in meetings open to the public, in compliance with the law.

Section 3. This resolution shall be in full force and effect from and immediately upon its adoption.

_____ seconded the motion and the roll being called upon the question of the adoption of the resolution, the vote was as follows:

TREASURER'S CERTIFICATE

The foregoing is a true and correct excerpt from the minutes of the regular meeting of the Board of Education of the Brecksville-Broadview Heights City School District, Ohio, held on July 5, 2023.

Dated: _____, _____

Treasurer, Board of Education
Brecksville-Broadview Heights City School District,
Ohio